

CIVIL PETITION FOR EXPUNGEMENT UNDER W. VA. CODE SEC. 61-11-25

IN THE CIRCUIT COURT OF KANAWHA COUNTY, WEST VIRGINIA

Petitioner: Alexandria Montgomery-Vandenberg Example

Underlying court: Circuit Court

Underlying criminal case: SYNTH-25-F-002

Civil action number (assigned by circuit clerk):

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I request expungement of the charges identified in the attached statutory supplement and custodian schedule. I state:

1. I completed deferred adjudication under W. Va. Code Sec. 61-11-22a

Program began: 02/01/2025

Full successful completion date: 07/10/2026

Order dismissing the charges: 07/16/2026

2. All charges originally brought are listed in the supplement, including charges dropped along the way. All arose from the same transaction or occurrence.

Incident account: All listed charges arose from the same synthetic incident on January 10, 2025.

3. I have no prior felony conviction. No related proceeding remains pending. The dismissal was not in exchange for a guilty plea to another offense.

4. The deferred adjudication ended with dismissal following full successful completion, not a plea to a lesser offense. The alleged victim of none of the listed charges was a family or household member within Sec. 48-27-204.

5. The statutory 60-day period runs from the order of dismissal. Earliest filing date: 09/14/2026

Date used for this timing calculation: 09/14/2026

Elapsed calendar days: 60

6. The certified dismissal order, signed diversion agreement or entered deferred-adjudication order, and successful-completion record must accompany this petition. The exhibit schedule identifies each required record.

7. I request an order expunging the eligible records of all charges originally brought from the same transaction or occurrence, subject to the exclusions and inspection limits of Sec. 61-11-25. I request no relief concerning criminal investigation reports or Division of Motor Vehicles records.

There is no filing fee or assessed cost for an action under Sec. 61-11-25(g).

Printed name: Alexandria Montgomery-Vandenberg Example

Address: 9876 Synthetic Long Residence Lane, Charleston, WV 25301

Telephone: 304-555-0142

Email: alexandria@example.org

Petitioner signature:

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Date signed:

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